

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

August 25, 2014

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Cook, Mr. Luna, Dr. Rinne, Mr. Shanor, Mr. Valdez and Ms. Williams. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Allen moved to approve, seconded by Ms. Williams. Motion carried. Voting "yes" -- all members of the governing body. Mayor Kaysen noted that two Consent Agenda items were referrals to Committee of the Whole, which would meet September 3, 2014 at 6:00 p.m. in Council Chambers.

[CA] Minutes from Regular Meeting of the Governing Body on August 11, 2014. Motion (per Consent Agenda) carried.

Mr. Shanor moved to approve payment of vouchers as presented, seconded by Mr. Valdez. Motion carried. Voting "yes" -- all members of the governing body.

Mayor Kaysen opened a public hearing to receive public input on an application requesting the establishment of a Residential Critical Traffic and Parking Area in the vicinity of the Cheyenne Regional Medical Center. Mark Escobedo, Traffic Engineer, advised the public hearing is in conjunction with the application that had been submitted and that application requirements had been met per City Code. Rona Bartos reviewed reasons for the application being submitted and read a statement concerning issues residents in the neighborhood are experiencing due to the congested parking conditions around the hospital (medical center) and use of on-street parking spaces by hospital employees, visitors and vendors. Her comments included the following topics: Measures the hospital has taken to assist with relief to the neighborhood; debris being deposited on private properties; blockage of drive-ways and unavailable parking for residents, visitors, and home delivery services; concern that a 2-hour parking limit as provided under establishment of a critical traffic and parking area will not alleviate the overall parking situation, and enforcement concerns. Ms. Bartos recommended that residential parking through a permitting process be implemented without the 2-hour restriction. Discussion included enforcement of the area for compliance, particularly after work hours and on weekends; residential permit parking relative to the establishment of a critical traffic and parking area and the current 2-hour parking limit time frame per City Code, and potential future ordinance change regarding the time frame. Upon inquiry, Mr. Escobedo provided general information on signage, monitoring and enforcement. Pursuant to inquiry concerning the retroactive

effect that a future ordinance changing the 2-hour time frame would have on the current application if approved under current 2-hour parking limit provisions, Dan White, City Attorney, responded research would need to be conducted on the topic. Ms. Williams submitted a resolution to Mr. White for legal review. There being no further comments or input and purpose of the hearing having been met, Mayor Kaysen closed the hearing and referred the application to Public Services Committee.

ORDINANCE - Amending various sections of the Cheyenne Unified Development Code (UDC) as initiated from the 2014 Annual Review, to increase point values for larger evergreen trees, deciduous trees, and shrub plantings, and reduce point values for large expanses of turf grass for all sites throughout the City requiring landscape improvements. Jean Vetter, High Plains Design, commented in favor of the ordinance change, noting the amendment addresses the quality of landscaping. Reporting for Public Services Committee, Mr. Shanor moved to approve on third and final reading, seconded by Ms. Williams. Motion carried. Voting "yes" -- all members of the governing body. (#4039)

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Unified Development Code, changing the zoning classification from County MR Medium Density Residential to MR-2 Medium Density Residential - Developing for the West 178' of the North 102' of Tract 324, Tract A (West 120' of the North 102' of Tract 323 and all of the North 102' of Tract 324 except the West 178') and Tract B (all of the North 102' of Tract 323 except the West 120'), Sunnyside Addition, 7th Filing, Cheyenne, Wyoming, to be known as Diamond Estates, 5th Filing (Replat in process) (located at the southeast corner of the intersection of Rock Springs Street and Pierce Avenue). Mr. Shanor moved to approve on second reading, seconded by Ms. Williams. Motion carried. Voting "yes" -- all members of the governing body.

ORDINANCE - Annexing to the City of Cheyenne, Wyoming, portions of tracts 245, 246, 247 and 248, Sunnyside Addition, 6th Filing, Laramie County, Wyoming (located at the northwest corner of the intersection of Hayes Avenue and US Highway 30). Mr. Shanor moved to approve on second reading, seconded by Ms. Williams. Motion carried. Voting "yes" -- all members of the governing body.

[CA] RESOLUTION - Re-appropriating the Fiscal Year 2015 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113. Motion (per Consent Agenda) carried. (#5612)

[CA] RESOLUTION - Certifying that the Governing Body of the City of Cheyenne has agreed on County projects to be submitted to the State Loan and Investment Board for 2015 - 2016 Countywide Consensus Block Grant funding. Motion (per Consent Agenda) carried. (#5613)

[CA] RESOLUTION - Certifying that the Governing Body of the City of Cheyenne is in agreement on two projects to be submitted by the Town of Albin to the State Loan and Investment Board for 2013 - 2014 Countywide Consensus Block Grant funding. Motion (per Consent Agenda) carried. (#5614)

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Diamond Estates, 5th Filing, a replat of the West 178' of the North 102' of Tract 324, Tract A (West 120' of the North 102' of Tract 323 and all of the North 102' of Tract 324 except the West 178') and Tract B (all of the North 102' of Tract 323 except the West 120'), Sunnyside Addition, 7th Filing, Cheyenne, Wyoming (located at the southeast corner of the intersection of Rock Springs Street and Pierce Avenue) -- referred to Public Services Committee (sponsor -- Mr. Shanor).

[CA] RESOLUTION - Approving Outside User Water Sewer Services, by User's Agreement, with the Microsoft Corporation, Lot 3, Block 1, North Range Business Park, 5th Filing, Laramie County, Wyoming -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Adopting the West Edge Visionary Blueprint as a working document and guide to the community's goals of managing stormwater in the Lower Capitol Basin, mitigating brownfields, creating meaningful public spaces, and facilitating private investment in the near west side of downtown Cheyenne -- referred to Public Services Committee (sponsors -- Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Cook, Mayor Kaysen, Mr. Luna, Dr. Rinne, Mr. Shanor, Mr. Valdez and Ms. Williams).

[CA] RESOLUTION - Building Cheyenne's future by reaffirming the City of Cheyenne's commitment to ethical principles and efficiency in government -- referred to Committee of the Whole (sponsors -- Mr. Allen and Mr. Shanor).

[CA] RESOLUTION - To increase economic development by reorganizing the Planning and Development Offices as independent entities -- referred to Committee of the Whole (sponsors -- Mr. Allen and Mr. Shanor).

[CA] Software License Agreement between the City of Cheyenne, Police Department, and Brazos Technology, College Station, Texas, for electronic citation software and maintenance services (e-citation grant, 1% Specific Purpose Sales and Use Tax). Motion (per Consent Agenda) carried (amount not to exceed \$34,721.50). (#6229)

[CA] Contract Employment Agreement between the City of Cheyenne, Police Department, and Ashley McNelly, for crime victim assistance services (Victim Services grant). Motion (per Consent Agenda) carried (amount not to exceed \$27,183.24). (#6230)

[CA] Contract Employment Agreement between the City of Cheyenne, Police Department, and Brenda Johnson, for crime victim assistance services (Victim Services grant). Motion (per Consent Agenda) carried (amount not to exceed \$34,223.04). (#6231)

[CA] Contract Employment Agreement between the City of Cheyenne, Police Department, and Leslie Burch, for crime victim assistance services (Victim Services grant). Motion (per Consent Agenda) carried (amount not to exceed \$46,005.24). (#6232)

[CA] Agreement between the City of Cheyenne, Office of Youth Alternatives, and Laramie County, Wyoming, for juvenile probation services -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Office of Youth Alternatives, and Laramie County Community Partnership, Inc., for Suicide Prevention Program Services at Johnson and Carey Jr.

High Schools in conjunction with the Wyoming Department of Education 21st Century Learning Centers ACCISS Program -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne, Office of Youth Alternatives, and Wyoming Department of Family Services, regarding the provision of Youth Alternatives Prevention Program services -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 5970 between the Wyoming Department of Transportation and the City of Cheyenne for the West Lincolnway Project (Wyoming Department of Transportation funding). Motion (per Consent Agenda) carried. (#5970)

[CA] Consideration of Bid #R-9-15 for furnishing bulk ice control product to the City of Cheyenne, Public Works Department (2011 - 2014 1% Sales Tax). Motion (per Consent Agenda) carried (accepted bid from Desert Mountain Corporation, Riverton, Wyoming - amount not to exceed \$117,750.00).

[CA] Consideration of Bid #R-5-15 for furnishing two new 2014 - 2015 diesel-powered 3-wheeled street sweepers with belt conveyor for the City of Cheyenne, Street and Alley Division (2007-2011 and 2011-2014 1% Sales Tax). Motion (per Consent Agenda) carried (accepted bid from Titan Machinery, Casper, Wyoming - amount not to exceed \$351,772.00 including trade-ins and add on options).

[CA] Consideration of Bid #R-7-15 for furnishing four new vehicles for the City of Cheyenne, Parks and Recreation Department (2011 - 2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #M-3-15 for a contract between the City of Cheyenne, 1% Construction Division, and CBJ Asphalt and Concrete Contractors, LLC, Phoenix, Arizona, for Fiscal Year 2015 Crack Seal project (2011 - 2014 1% Sales Tax) -- referred to Finance Committee.

Appointment of Kevin R. Williams to the International Fire Code Board of Appeals. Ms. Williams moved to approve, seconded by Dr. Rinne. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

Re-Appointments of Terence Roker, Philip Griggs and Mary (Aragon) Connor, to the Public Transit Advisory Board. Ms. Williams moved to approve, seconded by Dr. Rinne. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

Announcement was made that due to the Labor Day Holiday on Monday, September 1, 2014, regularly scheduled City Council Committee Meetings will instead be held in the Municipal Building, Room 122, 2101 O'Neil Avenue, Cheyenne, Wyoming, as follows: Finance Committee will meet Tuesday, September 2, 2014 at 11:00 a.m. and Public Services Committee will meet Wednesday, September 3, 2014 at Noon.

Under other business, Tom Lindsey, reviewed past history involving the vacant downtown "hole" and expressed his opinion on the need for re-development of the site. He proposed a multi-purpose building with an underground parking garage be built on the property, and offered his suggestions on various types of businesses and uses that could be housed in the building, such as a restaurant, tourism services, residential units and a roof-top open social space area. He stated his belief that a multi-purpose building would generate revenue.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:46 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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